

SENATE BILL 827

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to nonpublic schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 50, Part 8, is amended by adding the following as a new section:

In order to operate in this state as an approved Category III nonpublic school, the state board of education shall not require a private school that provides a fully online, self-paced educational program and that is regionally accredited by one (1) of the Category III regional accrediting agencies identified in the policies of the state board to:

(1) Comply with the class size requirements in § 49-1-104;

(2) Maintain an operating schedule that includes the minimum number of instructional days or minimum number of instructional hours per school day required of public schools in chapter 6, part 30 of this title;

(3) Comply with the requirements in § 49-6-5001 that each student enrolled in the school be vaccinated against disease; or

(4) Administer, at least once each school year, a nationally standardized achievement test covering the areas of English language arts and math to each student enrolled in the school in any of the grades three through eleven (3-11).

SECTION 2. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.